

Suraj Sah @ Mantu @ Suraj Kumar vs State Of Bihar & Anr on 8 September, 2008

IN THE HIGH COURT OF JUDICATURE AT PATNA
CR. REV. No.237 of 2007
SURAJ SAH @ MANTU @ SURAJ KUMAR
Versus
STATE OF BIHAR & ANR

3 8.9.2008

This criminal revision application has been filed against the order dated 17.1.2007 passed by the Principal Judge, Family Court, Biharsharif, Nalanda in Case No.36(M)/1993 thereby the petitioner has been directed to pay maintenance at the rate of Rs.700/- per month to opposite party no.2 under Section 125 of the Code of Criminal Procedure.

Heard learned counsel for the parties.

It is submitted by the learned counsel for the petitioner that the order in question is bad and illegal. The learned lower court has neither properly considered the evidence nor the facts and circumstances of the case. Opposite party no.2 is not a legally wedded wife of the petitioner. The real fact is that opposite party no.2 was the wife of one Rajendra Sharma. Opposite party no.2 is elder to the petitioner in age. She has falsely alleged herself as wife of the petitioner. It is further submitted that Ext-A, certified copy of voter list, would prove the assertion of the petitioner. It is also further submitted that even if the case of opposite party no.2 is considered to be true, the marriage of opposite party no.2 is deemed to be void under Section 5 of Hindu Marriage Act. Hence, she is not entitled to get maintenance.

On the other hand, learned counsel for opposite party no.2 has supported the order in question and submitted that opposite party no.2 is a legally wedded wife of the petitioner. At the time of marriage, Rajendra Sharma was not alive and, therefore, the marriage of the petitioner is not void. It is further submitted that Exts.-1 and 2 series are sufficient to prove that opposite party no.2 is wife of the petitioner. In support of it Exts. 1 and 2 series, which are letters and photographs of the petitioner and opposite party no.2, have been filed.

Exts 1 and 2 series would go to show that the petitioner had very intimate relation with opposite party no.2. Paragraph 7 of the impugned order would go to show that as per evidence Rajendra Sharma died before the alleged marriage of the petitioner. Therefore, Section 5 of Hindu Marriage Act does not apply in this case. At the time of marriage neither party had any spouse. In course of inquiry a large number of witnesses associated with the marriage gave evidence in support of the marriage of the petitioner with opposite party no.2. The marriage was solemnized according to Hindu customs and rites. .

Thus, in view of the facts and circumstances of the case as well as materials available on record, I find no merit in this revision application. Accordingly, this revision application is dismissed.

B. Jha

(Ghanshyam Prasad)